

July 31, 2008



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14678

EXPIRATION DATE: June 30, 2009

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: LND, Inc.
Oceanside, NY
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce for disposal of 61 non-DOT specification cylinders described as electron tubes that are part of radiation detectors containing boron trifluoride at a charging pressure not greater than 14 psig. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302a in that non-DOT specification cylinders are not authorized, except as provided herein.
5. BASIS: This special permit is based on the application of LND, Inc. dated March 25, 2008 and additional information submitted on May 8, 2008 and May 9, 2008, submitted in accordance with § 107.105 and the public proceeding thereon.

July 31, 20086. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Boron trifluoride, compressed	2.3	UN1008	NA, Hazard Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-refillable, non-DOT specification cylinders described as electron tubes that are part of radiation detectors. The electron tubes are constructed of aluminum. The tubes have welded, soldered, or solder glassed joints, and brazed metal to ceramic electrical feed-through assemblies. Each electron tube contain approximately 1 gram of boron trifluoride and has maximum volume of 11.4 cubic inches and a maximum charge pressure is 14 psig. The minimum design burst pressure of each electron tube is 1500 psig. Each electron tube must be manufactured in accordance with LND, Incorporated drawing number 1-920-0063-00 "Eng. Fabrication Specification" on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).

b. OPERATIONAL CONTROLS -

(1) Electron tubes must be shipped in a UN 1A2/X175/S open-head steel drum with a capacity of 20 gallon. Each drum can contain not more than 25 grams of boron trifluoride.

(2) The drum must be capable of withstanding a drop of 6 feet without breakage or rupture of the outside packaging or the contents.

(3) Transportation under the terms of this special permit is only authorized by motor vehicle from Battelle Pacific Northwest National Laboratory in Richland, WA to LND, Inc. in Oceanside, NY.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)–“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.
PO: BMOORE